

State vs Sukhjot Singh Etc. on 7 April, 2010

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IN THE COURT OF MS KIRAN BANSAL
ADDL. CHIEF METROPOLITAN MAGISTRATE III: SOUTH DISTT.
PATIALA HOUSE COURTS :NEW DELHI

State v/s Sukhjot Singh etc.

PS: Vasant Kunj

FIR No: 238/2000

U/s: 420/468/471 IPC

JUDGMENT

a) Sr number of the case	:	136/2
b) Date of commission of offence	:	In or around year 1996
c) Name of complainant , if any	:	Sh. Rameshwar Nath Gupta S/o Late Sh. Jagannath Gupta
d) Name & address of accused	:	1.Sukhjot Singh S/o Sh. Asdev Singh R/o H NO. 2282/21 C Chandigarh 2. Kamaljeet Sodhi W/o SH. Sukhjot Singh R/o H NO. 2282/21-C Chandigarh
e) The offence complained of	:	U/s 420/468/471IPC.
f) The plea of accused	:	Pleaded not guilty.
g) Final order	:	Acquitted
(i) The date when matter is fixed for orders	:	Not fixed for
h) The date of such order	:	07.4.2010

BRIEF STATEMENT OF THE REASONS FOR THE DECISION:-

1. The case of the prosecution is that in or around the year 1996 at 3354, Sector D pocket 3 Vasant Kunj, New Delhi, the accused persons namely Sukhjot Sing and Kamal Jeet Sodhi along with the other directors floated a company M/s Agro Gold Plantations and Resource Ltd, and under the name and style of the said company floated different scheme so as to lure the investors to invest the money under the different schemes floated by their firm and they both in furtherance of their common intention had provided such scheme in which the investors namely Nathu Singh, Kamla Ojha , Shaukat Ali Siddiqui, Rameshwar Nath Gupta and other in total invested a sum of Rs. 7 Lacs or more and and the accused persons in furtherance of their common intention issued post dated cheques of different amount to the above said investors having different payment dates having reasons to believe or having knowledge that the cheques if presented will be bounced for the reason insufficient funds and thus by issuing such cheques, both the accused persons committed an act of

deceiving the said investors while luring to invest money they otherwise had not ought to invest and thus the accused persons have played a fraud.

2. On the complaint of the complainants, the present case FIR was registered for the offence U/s 420/468/471 IPC against both the accused persons. After completion of the investigation challan was prepared and filed in the Court.

3. Subsequent to the filing of the challan, cognizance was taken and the accused persons were summoned. Thereafter, the accused had appeared before the Court, copies were supplied to them and thus after perusal of the challan U/s 173 Cr. P. C, the charge was framed against both the accused persons for the offence U/s 420/ 34 IPC on 21.09.01 to which both the accused persons pleaded not guilty and claimed trial, hence the matter was thereafter listed for PE.

4. PW-1 Ms. Prem Wadhkrkar who deposed that she had invested Rs.

1,20,000/- in total with M/s Agro Plantation and resorts Ltd, and purchased two bonds one is of Rs. 20,000/- and Rs. 50/- from the said amount of Rs. 1,20,000/- and on maturity she got Rs. 70,000/- and exhibited the copy of income certificate as ex. PW1/As, copy of the cheque issued by the accused company to her amounting Rs . 75,000/- as ex. PW1/B1 to B-4 along with the Bank return memo, which were dishonored being insufficient funds. She further stated that she had also invested Rs. 50,000/- i.e. 500 shares of Rs. 100 each, vide certificate along with yearly bonus of 4 years, are ex. PW1//C1 to C5 and that the accused company did not return the principal amount and the dividend/interest despite demands/ request and the undertaking acknowledging the investment of Rs. 50,000/- is ex. PW1/D and that she had lodge her complaint ex. PW1/E.

5. PW-2, SI Sehdev Tomar who deposed that on 30.07.200, he received this case file for further investigation and on 17.10.00, the accused Sukhjot Singh was produced in pursuance of P/W issued on his application and was arrested and his personal search was conducted vide ex. PW2/A. He further stated that on 07.12.2000, Mrs. Kamaljit Kaur Sodhi, was arrested and her personal search conducted vide ex. PW2/B and was formally arrested as she was already on anticipatory bail, and after the completion of the investigation he prepared the charge sheet and filed the same in the court. This witness was cross examined by the Ld. Defence Counsel.

6. PW-3 Nathu Singh, who deposed that in the month of December 1997, he invested Rs. 5000/- with the accused company through an agent and the company handed over a post dated cheque of Rs. 10,000/- after 15 days and at the time of maturity when he deposited the cheque, it was returned with the remark that the account closed. This witness had settled the present matter with the accused and also received the amount of Rs. 7,000/- and thus compounded the offence with the accused.

7. PW-4, Smt. Pushpa Jain, who deposed that in the year 1997, when she had gone to Lodhi Road, in an exhibition, there a person sitting on the counter assured her that if she would spend money in some plantation project the same would be enhanced to some extent, thus she deposited Rs. 15,000/-. She was however, could not tell about the name of the said company and time when she

had contacted with the accused and stated that accused used to change his office from one place to another place and she made complaint to SEBI, thus accused issued some post dated cheques to her out of which some were cleared and a settlement was arrived at between them and the accused paid the principal amount but not paid the interest and thus, she did not arrive at any settlement and this fact has been clearly stated in order sheet dated 11.04.07. This witness was cross examined by Ld. Defence Counsel also whereby she stated that she did not have any documents regarding her said investment with the accused company.

8. PW-5 Sh. Sheoraj Giri, who had also not supported the case of the prosecution and had stated that he had received his amount and thus he settled the dispute with the accused company. This witness was also cross examined by the Ld. Defence Counsel.

9. PW-6, Smt. Veena Singh, PW 7 Smt. Sarabhjeet Kaur, PW8 Smt. Usha Sethi, PW-9 K S Chauhan, who all, also settled the matter as they had received their entire amount from the accused company and compounded the offence with the accused person.

10. PW-10, ASI Anant Singh, who has been examined being the duty officer and exhibited on record the copy of the present case FIR as ex. PW10/A and his endorsement at point X on the Asal Tehrir.

11. PW-11, Rtd. SI Dharampal, who deposed that on 15.4.2010, he received the present complaint from SH. Rajeshwar Nath Gupta, and he made endorsement at point A on ex. PW1/A and got the present FIR registered and that he also received several other complaints from other aggrieved persons namely Subhash Sharma, Nathu Singh, Madhu Jain, Nariman, Wadekar, K S Chauhan, Kamla Sharma and others against the accused persons and thus he obtained the copy of the documents from them and recorded their statements and tried to apprehend the accused but could not trace them and thereafter, he was transferred from the PS and further investigation was assigned to SI Sehdev Tomer. This witness was also cross examined by the Ld. Defence Counsel, whereby he admitted that he complaint ex. PW11/A does not bear the signatures of Rameshwar Nath Gupta and that no endorsement is on ex. PW11/A. He also stated that he did not know as to how the said complaint was received at PS. He also stated that he did not verify the facts of the complaint ex. PW11/A from independent sources except for recording statement U/s 161 Cr. P.C and taking the photocopies.

12. Thereafter, after granting sufficient opportunities to the prosecution to conclude the Prosecution Evidence no other witness could be served or appeared to depose before the court despite summoning the accused persons through the office of the DCP concerned and thus in such circumstances where even the last opportunity was granted to the prosecution for concluding the PE, the PE was closed vide order dated 21.11.09 and matter was fixed for recording of statement of accused.

13. At the stage when the matter was listed for the purpose of the prosecution evidence some of the public independent witnesses namely, Raj Kumar, Smt Manju Jain, Smt. Kamla Ojha, Mrs. S Narsimahan, Jagdish Singh Aulakh, Shaukat Ali Siddiqui, Vinita, Dr. Hari Dev Goel and Subhash Sharma, though appeared before the court but stated that they have compounded the present matter

with the accused persons as they all had received their amount from the accused persons and thus their statement were recorded to the said effect.

14. The matter was thereafter taken up for the purpose of recording of Statement of accused persons U/S 281 Cr. P. C and the statement of the accused persons recorded wherein all the incriminating evidence and material available on record were put to accused persons to which they pleaded innocent and falsely implicated in the present case. However, accused did not prefer to lead any defence evidence, the matter is thus listed for the purpose of the final arguments and the arguments heard and entire record have been perused.

15. I have heard the submission of Ld. APP for the State and the accused himself. I have also carefully perused the record.

16. The court has carefully examined the entire material available on record including the testimony of the PWs recorded before the Court.

17. In the present cases the main charge sheet has been filed on the complaint of the complainant Rameshwar Nath Gupta who himself has not been brought/ appeared before the court to depose regarding the present complaint and thus not supported the case of the prosecution. Perusal of the file shows that during the course of proceeding at the time of the evidence the accused persons made certain payments to the other aggrieved persons in the present complaint who are listed in the list of the witnesses, and who all had given their respective statement in this regard before the court and stated that they had received their entire amount and thus they did not wish to pursue with the present complaint.

18. Perusal of the testimonies of the witnesses examined on record reveals that in the present case independent witnesses who had been examined before the court i.e. PW5 Sh. Sheoraj Giri, PW-6 Smt. Veena Singh, PW7 Sarabhjeet Kaur, PW-8 Usha Sethi, and PW-9 K S Chauhan, though admitted the fact that they had invested the money with the accused company, but at the same time, they all stated that they got their amount back and thus settled the present matter with the accused persons and thus not supported the case of the prosecution. However, the the main backbone of the present case i.e. the complainants Rameshwar Gupta, had failed to appear before the court and depose regarding the present case.

19. In the present case though the allegations are that the post dated cheques were issued by the accused which got bounced, but neither those post dated checks have been placed on record nor any documents relating to the fact that they were bounced due to insufficient funds or due to any other reason what so ever, has been filed on record. Nor any witness from the concerned bank has been sited in the list of the witnesses who could have prove on record the fact, if any relating to the bouncing of the said cheques issued by the accused and also the original cheques and their return memos have not been placed on record. There is only the bonds issued by the accused company has been placed on record and even some of the complainant have not been traced out and had not come before the court to depose in support of the prosecution case.

20. Thus in view of the totality of the facts and circumstances, where even the complainant i.e. the main backbone of the present case, have not been examined who could only state regarding the act of the accused by which the accused committed fraud or the way as to how the accused cheated him or can strengthen the story of the prosecution the prosecution has failed to prove its case against the accused persons. Moreover, the perusal of the testimony of the PW-11 Retd. SI Dharampal, reveals that the investigation in the present case was faulty as PW-11, in his cross examination admitted that the complaint ex. PW11/A does not bears the signatures of the complainant and also that he was not aware as to how the complaint ex. PW11/A was received at PS. He also stated that he had not verify the photocopies with the original documents and that he also did not verify the facts of the complaint ex. PW11/A with the independent sources.

21. In view of the totality of the facts and circumstances and also in view of the settlement arrived at between the accused persons and most of the complainant/ aggrieved persons in the present case as the accused had made their payments, except the PW-4 Pushpa Jain, who stated that she had not settled the matter with the accused as the interest money has not been received, but at the same time she also admitted that her principal amount had been returned back by the accused to her, and also in view of the fact that no original document in support of the present complaint has been filed on record against the accused, and even the PW-4 Pushpa jain in her testimony has specifically stated that she did not remember the name of the company with which she had invested the money and she also could not prove any documents against the accused, thus, it is held that the prosecution has failed to prove its case beyond the reasonable doubts against the accused persons, thus both the accused persons stand acquitted for the offence U/s 420/34 IPC . Their bail bonds stand canceled. Surety Bonds stand discharged. Documents, if any, be returned after cancellation of the endorsement, if any, on proper receipt. File be consigned to record room.

Announced in the open Court (KIRAN BANSAL)
today i.e 07.04.2010 ADDL. CHIEF, METROPOLITAN MAGISTRATE-03
SOUTH DISTT, PHC, DELHI

State v/s Sukhjot Singh etc.
PS: Vasant Kunj
FIR No: 238/2000
U/s: 420/468/471 IPC

07.04.2010

Present: Ld. APP for the State.

Both Accused present along with Ld. Counsel.

PW-10 and PW-11 are present examined and cross examined by Ld. Defence Counsel and discharged.

NO other witness is present today despite summoning the witness through the office of the DCP concerned and also despite last opportunity for the concluding the entire prosecution. Thus, in view

of the facts, where the matter pertains to the year 2000, no ground made out to grant any further opportunity of the PE , the PE stands closed. The matter is taken up for the purpose of the recording of the statement of the accused persons and the statement of both the accused persons U/s 281 Cr. P.C recorded separately after putting all the incriminating evidence against them, to which they pleaded innocent, however, do not want to lead any DE .

At the request of the Ld. Counsel for the accused persons the final arguments heard today itself. The matter is reserved for orders at 4:00 PM today itself.

(KIRAN BANSAL) ADDL. CHIEF, METROPOLITAN MAGISTRATE-03 SOUTH DISTT, PHC, DELHI State v/s Sukhjot Singh etc. PS: Vasant Kunj FIR No: 238/2000 U/s: 420/468/471 IPC 07.04.2010 At 4: 00 PM.

Present: Ld. APP for the State.

Both Accused present along with Ld. Counsel.

Vide separate judgement dictated and announced in the court today, both the accused persons stand acquitted for the offence U/s 420/34 IPC. His bail bonds stands canceled. Surety Bond stands discharged. Documents if any be returned after cancellation of the endorsement if any on proper receipt. File be consigned to record room.

Announced in the open Court	(KIRAN BANSAL)
today i.e 07.04.2010	ADDL. CHIEF, METROPOLITAN MAGISTRATE-03
	SOUTH DISTT, PHC, DELHI